

Calendar Line 5-6

Case Name: *Roy Toledo v D.H. Smith Company, Inc.*

Case No.: 25CV460503

PLAINTIFF'S MOTION FOR MONETARY SANCTIONS

[Plaintiff's requests for a protective order and appointment of a discovery referee have been withdrawn. The sole remaining issues are Plaintiff's requests for monetary sanctions pursuant to Code of Civil Procedure sections 2023.030 and 128.5.]

The Court previously considered the circumstances surrounding the parties' January 23, 2026 deposition dispute in connection with Defendant's motion to compel further deposition testimony. In its April 8, 2026 order, the Court reviewed the deposition excerpts and correspondence submitted by the parties, found that the deposition had become unnecessarily contentious, noted that certain commentary by examining counsel contributed to the escalation of the dispute, granted Defendant's motion to compel completion of Plaintiff's deposition, and denied Defendant's request for sanctions.

I. Request for Sanctions Under Code of Civil Procedure Section 2023.030

Code of Civil Procedure section 2023.030 authorizes sanctions for misuse of the discovery process. Misuses of the discovery process include, among other things, employing a discovery method in a manner that causes unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (Code Civ. Proc., § 2023.010, subd. (c).)

Plaintiff contends that defense counsel engaged in a pattern of hostile and demeaning conduct throughout discovery, including argumentative deposition questioning, sarcastic and condescending communications, mischaracterizations concerning deposition scheduling, and repeated accusations that Plaintiff and counsel were attempting to delay or obstruct discovery. Plaintiff points to, among other things, defense counsel's references to opposing counsel's "shenanigans," an email offering to provide "wi-fi and coffee and bagel" if counsel arrived early, comments regarding a purported "delay, derail and prevent strategy," and statements made during deposition proceedings that Plaintiff characterizes as belittling, intimidating, or unnecessarily combative.

The Court does not condone discourteous, sarcastic, argumentative, or condescending conduct during discovery. Counsel are expected to conduct themselves in accordance with the California Attorney Guidelines of Civility and Professionalism and the Santa Clara County Bar Association Code of Professionalism. As recognized in *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1015, depositions should be conducted in a professional manner free from harassment and intimidation.

The Court's concern regarding the tone of certain communications and deposition exchanges does not end the analysis. The issue before the Court is whether the conduct satisfies the statutory standards for monetary sanctions. On this record, the Court concludes it does not.

Having again reviewed the parties' submissions, the Court reaches the same conclusion it reached in connection with the April 8, 2026 ruling. The record reflects a contentious discovery dispute, mutual accusations of misconduct, and instances of unprofessional behavior. The Court previously observed that certain commentary by examining counsel contributed to the escalation of the dispute. However, the Court is not persuaded that the conduct identified by Plaintiff constitutes a misuse of the discovery process warranting monetary sanctions under Code of Civil Procedure section 2023.030.

The Court further notes that, when ruling on Defendant's motion to compel arising from the same underlying events, it declined to impose sanctions. Nothing presented in the instant motion warrants a different conclusion.

Accordingly, Plaintiff's request for sanctions pursuant to Code of Civil Procedure section 2023.030 is DENIED.

II. Request for Sanctions Under Code of Civil Procedure Section 128.5

Code of Civil Procedure section 128.5 authorizes sanctions only for actions or tactics made in bad faith that are frivolous or solely intended to cause unnecessary delay. (Code Civ. Proc., § 128.5, subd. (a).) A tactic is frivolous if it is totally and completely without merit or undertaken for the sole purpose of harassing an opposing party. (Code Civ. Proc., § 128.5, subd. (b)(2).)

Because of the seriousness of such sanctions, the statute is directed at exceptional circumstances and must be applied cautiously. (*In re Marriage of Sahafzadeh-Taeb & Taeb* (2019) 39 Cal.App.5th 124, 147; *Monex Internat., Ltd. v. Peinado* (1990) 224 Cal.App.3d 1619, 1622.) The power to impose sanctions under section 128.5 should be exercised sparingly and reserved for truly egregious conduct. (*Luke v. Baldwin-United Corp.* (1985) 167 Cal.App.3d 664, 669.)

Plaintiff argues that defense counsel's conduct demonstrates a pattern of harassment and manipulation akin to the conduct at issue in *Sahafzadeh-Taeb*. The Court disagrees. The conduct described by Plaintiff—including sarcastic emails, discourteous remarks, accusations concerning scheduling disputes, and contentious deposition exchanges—does not establish the type of bad-faith actions or tactics contemplated by section 128.5. Unlike the conduct addressed in *Sahafzadeh-Taeb*, the record here does not demonstrate litigation tactics that were frivolous, manipulative, obstructive, or undertaken solely for purposes of delay. Nor does the Court find evidence sufficient to establish the subjective bad faith required by the statute.

The Court remains troubled by the tone reflected in portions of the record. However, even assuming the conduct occurred substantially as Plaintiff describes, the Court cannot conclude that Defendant or defense counsel engaged in actions or tactics that were frivolous or intended solely to cause unnecessary delay within the meaning of section 128.5.

Accordingly, Plaintiff's request for sanctions pursuant to Code of Civil Procedure section 128.5 is DENIED.

III. Defendant's Request for Sanctions

Defendant requests sanctions on the ground that Plaintiff's motion lacks merit.

The Court declines to award sanctions. Although Plaintiff has not prevailed on the motion, the Court cannot conclude that the motion was frivolous or brought solely for purposes of harassment or delay. The Court's prior ruling acknowledged concerns regarding the tone and conduct reflected in portions of the parties' discovery interactions. Under these circumstances, an award of sanctions against Plaintiff would be inappropriate.

Defendant's request for sanctions is DENIED.

DISPOSITION

Plaintiff's motion for monetary sanctions is DENIED.

Defendant's request for sanctions is DENIED.

The Court will prepare the Order.

Calendar Line 7**Case Name:** *John Doe. L.M. v. Craig Chandler et al.***Case No.:** 25CV471073**Plaintiff's Motion to Compel California Commission on Teacher Credentialing's Compliance With Subpoena for Production of Business Records****Procedural Background**

Plaintiff moves pursuant to Code of Civil Procedure sections 1987.1 and 2025.480 to compel nonparty California Commission on Teacher Credentialing ("CCTC") to comply with a deposition subpoena for production of business records served October 23, 2025, with a production date of November 21, 2025. The subpoena seeks investigative, disciplinary, credentialing, and related records concerning Craig Richard Chandler, a former teacher alleged to have sexually abused Plaintiff. Plaintiff also seeks monetary sanctions in the amount of \$3,060 pursuant to Code of Civil Procedure sections 1987.2 and 2023.010.

CCTC opposes the motion, asserting procedural defects, statutory confidentiality under the Education Code, official information and deliberative process privileges under Evidence Code section 1040, privacy concerns, and limitations on production based on *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039.

Procedural Objections

Although CCTC contends Plaintiff failed to meet and confer regarding specific entries in the January 2026 privilege log, the record reflects that the parties engaged in substantive meet and confer efforts addressing the core disputes, including categorical objections based on statutory confidentiality, privilege, and privacy. The subsequent identification of individual log entries does not alter the essential nature of the dispute, which has been fully briefed.

Accordingly, the Court declines to deny the motion on procedural grounds. The motion is properly considered on its merits.

Relevance and Scope of Discovery

Discovery is permitted as to "any nonprivileged matter that is relevant to the subject matter involved in the pending action or reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.)

The subpoena seeks CCTC records relating to Defendant Chandler's ("Chandler") credentialing, disciplinary history, and investigative file, including application materials, criminal conviction disclosures, internal notes, and committee materials.

The privilege log reflects that responsive documents include Chandler's 2002 credential application and criminal conviction disclosure, 2003 investigative notes concerning diversion proceedings, internal chronology entries, requests for law enforcement records, and agenda and committee materials addressing credential issuance and disciplinary determinations.